

# **Vishal Rai Soni (Jain) & Ors vs The State Of West Bengal & Anr on 24 September, 2014**

**Author: Ashim Kumar Roy**

**Bench: Ashim Kumar Roy**

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Form No.J.(1)

In the High Court at Calcutta  
(Criminal Revisional Jurisdiction)  
Appellate Side

Present:  
The Hon'ble Justice Ashim Kumar Roy

C.R.R. No.2695 of 2014

Vishal Rai Soni (Jain) & Ors.  
-Vs-  
The State of West Bengal & Anr.

For the Petitioners: Ms. S. Ghatak,  
Mr. Ovik Sengupta.

For the opposite party No.2: Mr. Bajranj Manot.

For the State : Mrs. Rituparna Dey.

Heard on : 03-09-2014.

Judgment on : 24.9.2014.

Ashim Kumar Roy, J.

This is an application for quashing of the charge sheet relating to the offence punishable under Sections 498A/420/406/120B I.P.C. and under Sections 3 and 4 of the Dowry Prohibition Act, arising out of Amherst Street Police Station Case No.65/2010, corresponding to the G.R. Case No.657/2010, now pending before the learned Metropolitan Magistrate, 4th Court, Calcutta.

The quashing has been sought for, on the ground that the same is an outcome of a matrimonial dispute and such matrimonial dispute has been resolved out of court by and between the de facto

complainant and the petitioner No.1 at the intervention of common friends and relations. It is also submitted that after such development, the parties have filed an application under Section 13B of the Hindu Marriage Act and same is pending before the learned Judge, Fast Track, 5th Court at Barasat being Matrimonial Suit No.103/2013 and by an order passed on August 12, 2014, the said suit has been decreed and the marriage between the parties has been dissolved. It is further submitted that in such circumstances, the opposite party No.2/de facto complainant is not willing to pursue the criminal case, which was brought at her behest.

The learned Counsel, appearing on behalf of the opposite party No.2/wife, by filing the Vakalatnama, in the department under filing No.A15806 dated 3.8.2014, conceded to the submission made by the learned Counsel for the petitioners and submitted that the opposite party No2/wife is not also desirous to proceed with the criminal case and if the charge sheet is quashed, she has no objection.

The learned Counsel appearing on behalf of the State has also not raised any objection against the prayer of the petitioners for quashing of the charge sheet on the ground of compromise.

Heard the learned Counsel appearing on behalf of the parties and considered their respective submissions. Perused the joint compromise petition which is already on record.

This criminal case is an outcome of a matrimonial dispute and having regard to the fact already a suit for dissolution of marriage on mutual consent is pending and the de facto complainant of the case is no longer desirous to proceed with the criminal case, no useful purpose will be served by keeping the said criminal proceeding survived. If the impugned proceeding is allowed to remain pending, the same shall bring out a situation which will be completely an abuse of process of court. In this backdrop and for ends of justice, the impugned proceeding is liable to be quashed and accordingly quashed.

This application is allowed and disposed of.

Urgent Photostat certified copy of this order, if applied for, be given to the parties at an early date.

( Ashim Kumar Roy, J. )